

26STCV01696 26STCV01696

County: los-angeles

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Case Number: 26STCV01696 Hearing Date: July 27, 2026 Dept: 507

Tentative Ruling

Judge Rolf M. Treu, Department 507

HEARING DATE: July 27, 2026 TRIAL DATE: None Set

CASE: Karleen Cordova v. Chargers Football Company, LLC, et al.

CASE NO.: 26STCV01696

MOTION

TO COMPEL ARBITRATION AND STAY PROCEEDINGS

MOVING PARTY: Defendant

Chargers Football Company, LLC

RESPONDING PARTY(S): Plaintiff Karleen Cordova

PROOF OF

SERVICE:

.

Correct Address: Yes.

.

16/21 (CCP § 1005(b)): (1)-(2) OK.

Served electronically on March 10, 2026, for a hearing date of October 7, 2026.

CASE

HISTORY:

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01/16/26: Complaint filed.

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03/10/26: Motion to Compel

Arbitration and Stay Proceedings filed.

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07/14/26: Opposition filed.

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07/20/26: Reply filed.

STATEMENT OF

MATERIAL FACTS AND/OR PROCEEDINGS:

In this employment law action, Plaintiff Karleen Cordova ("Plaintiff") alleges (among other things) that her former employer, Defendant Chargers Football Company, LLC ("Defendant"), discriminated and wrongfully terminated her after she became pregnant and subsequently requested accommodations to care for her disabled son.

Defendant

now moves to compel Plaintiff's claims to arbitration pursuant to the Federal Arbitration Act ("FAA"). Plaintiff opposes the motion but does not dispute that the FAA governs the agreement.

TENTATIVE

RULING:

Defendant's motion to
compel arbitration and to stay proceedings pending completion of arbitration is
GRANTED.

Defendant to give notice.

DISCUSSION:

Motion

to Compel Arbitration and Stay Proceedings

Legal Standard

Under the FAA, “a written agreement to arbitrate ‘shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract’ (9 U.S.C. § 2.)” (Ford Motor Warranty Cases (2025) 17 Cal.5th 1122, 1128.)

“On a motion to compel arbitration, the moving party bears the burden of proving the existence of an arbitration agreement, and the opposing party bears the burden of proving any defense to enforcement, such as unconscionability.” (Doss v. Tesla, Inc. (2026) 121 Cal.App.5th 81, 89.) On such motions, “the court must first determine whether the parties actually agreed to arbitrate the dispute. [Citations.] General principles of California contract law guide the court in making this determination.’ [Citation.]” (Ford Motor Warranty Cases, supra, 17 Cal.5th at p. 1128.) “[D]ue regard must be given to the federal policy favoring arbitration and, as a result, ambiguities as to the scope of the arbitration clause should be resolved in favor of arbitration. [Citations.]” (LaCour v. Marshalls of CA, LLC (2025) 117 Cal.App.5th 505, 521.)

Evidentiary Objections

The Court overrules

Plaintiff’s objections (i.e., Nos. 1 to 5) to the declaration of Dayreca Sims (“Sims”), Defendant’s Director of Payroll & Benefits. Defendant did not file objections.

Existence of Arbitration Agreement

As Defendant argues in its

papers, a party moving to compel arbitration “can meet its initial burden by attaching to the petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature.’ [Citation.] Alternatively, the moving party can meet its burden by setting forth the agreement’s provisions in the motion. [Citations.] For this step, ‘it is not necessary to follow the normal procedures of document authentication.’ [Citation.]” (Gamboa v. Northeast

Community Clinic (2021) 72 Cal.App.5th 158, 165 (Gamboa).)

The Court finds that Defendant has met its initial burden by submitting a copy of the agreement purporting to bear Plaintiff's signature. (See Sims Decl., Exh. A – a copy of the "Arbitration Agreement and Acknowledgement".) The agreement states in relevant part:

"As a condition of my employment and/or continuing employment, I agree and acknowledge through this Arbitration Agreement and Acknowledgment form ('Arbitration Agreement') that the Chargers Football Company, LLC (the 'Company') and I will utilize binding arbitration to resolve all disputes arising out of or relating to my employment with the Company. Both the Company and I mutually agree that any claim, dispute and/or controversy that either I may have against the Company (or its owners, directors, officers, managers, employees, and agents) or the Company may have against me, arising from, related to, or having any relationship or connection whatsoever with my seeking employment with, employment by, or other association with the Company, shall be submitted to and determined exclusively by binding arbitration under the Federal Arbitration Act ('FAA'), in conformity with the procedures of the California Arbitration Act (California Code of Civil Procedure § 1280, et seq., including § 1283.05 and all of the Act's other mandatory and permissive rights to discovery). Included within the scope of this Arbitration Agreement are all disputes, whether based in tort, contract, statute, equitable law, or otherwise."

(Id. at p. 61, the first paragraph [italics added].)

"If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement." (Gamboa, supra, 72 Cal.App.5th at p. 165 [emphasis added].) "The opposing party can do this in several ways. For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement." (Ibid.)

Here, Plaintiff has failed to

meet her burden by failing to submit any evidence (e.g., her affidavit) challenging the Arbitration Agreement's authenticity. Plaintiff's arguments in her opposition do not count as evidence. The Court also finds that the broad language of the Arbitration Agreement covers Plaintiff's claims in this action. Plaintiff has not argued otherwise in her opposition.

For those reasons, the Court finds that the parties agreed to arbitrate this dispute.

Unconscionability

Plaintiff argues that even if she signed the Arbitration Agreement, the agreement is unenforceable because it is unconscionable.

"Arbitration agreements are contracts, and thus they are subject to generally applicable contract defenses, such as unconscionability. [Citations.] "A contract is unconscionable if one of the parties lacked a meaningful choice in deciding whether to agree and the contract contains terms that are unreasonably favorable to the other party." [Citation.] [Citation.] (Stoker v. Blue Origin, LLC (2026) 120 Cal.App.5th 91, 104 (Stocker).)

"Unconscionability has both a substantive and procedural element." (Stoker, supra, 120 Cal.App.5th at p. 104.) "Both procedural and substantive unconscionability must be shown for the defense to be established, but they need not be present in the same degree. Instead, they are evaluated on a sliding scale. [T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to conclude that the term is unenforceable. Conversely, the more deceptive or coercive the bargaining tactics employed, the less substantive unfairness is required." (Ibid. [internal citations and quotation marks removed].)

1. Procedural Unconscionability

"The procedural element addresses the circumstances of contract negotiation and formation, focusing on oppression or surprise due to unequal bargaining power." [Citation.] This element 'is generally established by showing the agreement is a contract of adhesion, i.e., a "standardized contract which, imposed and drafted by the party of superior bargaining strength, relegates to the subscribing party only the

opportunity to adhere to the contract or reject it.” [Citation.]” (Stoker, supra, 120 Cal.App.5th at p. 104.)

For example, in Stoker, the Court of Appeal held the arbitration agreement in that employment law case was procedurally unconscionable because the plaintiff, Craig Stoker, “asserted in a declaration that when he was offered the position with [the defendant employer] in August 2020, [the employer’s] recruiter, Ben Baker, said Stoker would ‘have to sign an employment agreement as a term and condition of my employment.’ Baker represented that the employment agreement ‘contained “standard terms,” that “everyone has to sign to these terms,” and “everybody always signs to these terms.”’ Stoker asserted in his declaration that he had questions about the documents he was signing, but ‘Baker did not offer to answer any questions I had,’ and ‘[t]he way I was presented the agreement, and based on our prior discussions, it seemed that the terms that were not previously negotiated were nonnegotiable.’” (Stoker, supra, 120 Cal.App.5th at p. 106.) “In support of its motion to compel arbitration, [the employer] did not present any evidence that the employee agreement was not adhesive—i.e., that Stoker had, or could have, negotiated the terms of the employee agreement. [The appellate court] therefore conclude on the basis of the undisputed evidence that the employee agreement was a contract of adhesion.” (Ibid.)

Unlike in Stoker, Plaintiff has not submitted any declaration or evidence to support her claim that the Arbitration Agreement is procedurally unconscionable. Also unlike the defendant in that case, in this case, Defendant’s Director of Payroll & Benefits, Sims, testifies that, based on her own experience with the onboarding process: “It is the [Defendant’s] policy to provide newly hired employees ample time to review the onboarding documents, including the Arbitration Agreement.” (Sims Decl., ¶ 3.) Plaintiff has not submitted evidence disputing those facts.

Therefore, the Court finds that Plaintiff has failed to establish procedural unconscionability. Notwithstanding that finding, the Court analyzes Plaintiff’s substantive unconscionability arguments.

2. Substantive Unconscionability

“Substantive

unconscionability concerns ‘the fairness of a contract’s terms. This analysis “ensures that contracts, particularly contracts of adhesion, do not impose terms that have been variously described as “‘overly harsh’”, “‘unduly oppressive’”, “‘so one-sided as to ‘shock the conscience’”, or ‘unfairly one-sided’ [.] All of these formulations point to the central idea that the unconscionability doctrine is concerned not with “a simple old-fashioned bad bargain’ [citation], but with terms that are “unreasonably favorable to the more powerful party.’” [Citation.]” (Stoker, supra, 120 Cal.App.5th pp. 106–107 [internal citations removed].)

Plaintiff first argues that

the Arbitration Agreement is substantively unconscionable because it lacks mutuality. She argues that the agreement requires her to arbitrate any dispute she might have against Defendant but not vice versa. (Opposition, pp. 8:20-9:14.)

That argument is

unpersuasive. As Defendant points out, the Arbitration Agreement requires Defendant to also arbitrate “any claim, dispute and/or controversy ... the Company may have against [Plaintiff], arising from, related to, or having any relationship or connection whatsoever with my seeking employment with, employment by, or other association with the Company”

Next, Plaintiff argues that the

agreement is substantively unconscionable because its scope is too broad. (See Opposition, p. 11:19-24 [“Because the clause reaches any dispute bearing any relationship or connection whatsoever to Ms. Cordova’s ‘association with the Company,’ and because it never expires, it captures disputes that have nothing to do with her job. Under its terms, if years after her termination Ms. Cordova were injured as a spectator at a Chargers game, she would be forced to arbitrate even that claim”].)

Plaintiff also argues that the

agreement is unconscionable because it is of an infinite duration, as the arbitration agreement in *Cook v. University of Southern California* (2024) 102 Cal.App.5th 312 (*Cook*).

“In *Cook*, the plaintiff

(Cook) filed a lawsuit against her former employer, the University of Southern California (USC), and two coworkers alleging discrimination and harassment. (Cook, supra, 102 Cal.App.5th at pp. 316–317.)" (Ayala-Ventura v. Superior Court (2026) 119 Cal.App.5th 241, 256 (Ayala-Ventura).)

"Cook and USC had an arbitration agreement wherein they "agree[d] to the resolution by arbitration of all claims, whether or not arising out of Employee's University employment, remuneration or termination, that Employee may have against the University or any of its related entities, including but not limited to faculty practice plans, or its or their officers, trustees, administrators, employees or agents, in their capacity as such or otherwise; and all claims that the University may have against Employee." ([Cook, supra, 102 Cal.App.5th] at p. 317.)" (Ayala-Ventura, supra, 119 Cal.App.5th at p. 256.)

"The Court of Appeal ... found unconscionable the agreement's requirement the plaintiff must resolve by arbitration 'any and all claims, whether or not they arose from the employee/employer relationship.' ([Cook, supra, 102 Cal.App.5th] at p. 324.) The agreement was further deemed unconscionable because it survived indefinitely following Cook's termination from USC and lacked mutuality as it did not require USC's "related entities" to arbitrate their claims against Cook. (Id. at pp. 325–326.)" (Ayala-Ventura, supra, 119 Cal.App.5th at p. 256 [emphasis added].)

Plaintiff argues that the Arbitration Agreement is as problematic as the one in Cook because it requires arbitration of all claims "arising from, related to, or having any relationship or connection whatsoever with [her] seeking employment with, employment by, or other association with the Company ..." (emphasis added). Plaintiff argues that the italicized phrase is so broad that if a fellow employee hit Plaintiff's car in a parking lot, she will have to submit that claim to arbitration. (Opposition, p. 9:22-24.) In its reply, Defendant disputes Plaintiff's interpretation of the meaning of the scope of the agreement, arguing that the scope is limited to "disputes arising out of Plaintiff's efforts to obtain employment with Defendant and her employment relationship with Defendant, and the cessation thereof." (Reply, p. 10:1-3.)

The Court agrees with Plaintiff that the Arbitration Agreement contains broad language and is not restricted to

a specific time period.

However, as the Court of Appeal explained in Ayala-Ventura:

“the Cook court did not conclude an arbitration agreement covering all claims including those unrelated to employment is per se unconscionable as [the plaintiff in that case and Plaintiff in this case] seem[] to argue. Because ‘parties are free to contract for asymmetrical remedies and arbitration clauses of varying scope,’ the Agreement’s purportedly broad scope does not necessarily mandate a finding of unconscionability. [Citation.]” (Ayala-Ventura, supra, 119 Cal.App.5th at p. 257.) Instead, “[t]he agreement in Cook was unconscionable in part because of the multifarious ways in which a claim against USC ‘completely unrelated to [Cook’s] employment’ could arise. [Citation.] As an example, the trial court observed that if Cook were to undergo a botched surgery at USC’s hospital in 15 years, her claims would still be subject to arbitration.” (Ibid.)

Here, unlike the arbitration agreement in Cook, the Arbitration Agreement does not require Plaintiff to arbitrate all claims “whether or not they arose from the employee/employer relationship” such that it is possible to come up with all the multifarious ways in which a claim unrelated to Plaintiff’s employment could arise.

Furthermore, when parties to an arbitration agreement indicate that the agreement is ambiguous by disputing its meaning but, like here, fail to present extrinsic evidence in support of their arguments, California courts “resolve the question of ambiguity based solely on the contents of their agreement.” (Duran v. EmployBridge Holding Co. (2023) 92 Cal.App.5th 59, 66.)

Here, looking solely at the contents of the Arbitration Agreement, the Court finds that the Arbitration Agreement is confined to all disputes arising out of or relating to Plaintiff’s employment with Defendant. This is because, under the principle of ejusdem generis (which means “of the same kind”): “‘Where general words follow specific words in a [contractual provision] the general words are construed to embrace only objects similar in nature to those objects enumerated by the preceding specific words. Where the opposite sequence is found, i.e., specific words following general ones, the doctrine is equally applicable, and restricts application of the general terms to things that are similar to those enumerated.’” [Citation.]” (Mountain Air Enterprises, LLC v. Sundowner

Towers, LLC (2017) 3 Cal.5th 744, 754; *Nygard, Inc. v. Uusi-Kerttula* (2008) 159 Cal.App.4th 1027, 1045 [citations removed].) Here, the first scenario applies because the phrase at issue—“other association with the Company”—is general and follows more specific phrases, i.e., “all disputes arising out of or relating to [Plaintiff’s] employment with the Company,” and “any claim, dispute and/or controversy that either [party]... may have ... arising from, related to, or having any relationship or connection whatsoever with [Plaintiff] seeking employment with, employment by ... the Company.” Therefore, the phrase “other association with the Company” must be construed to embrace only similar in nature to those objects enumerated by the preceding specific words, which restrict the Agreement to claims arising out of and relating to Plaintiff’s employment with Defendant.

Therefore, Plaintiff’s Cook arguments are unpersuasive.

Lastly, Plaintiff argues that the Arbitration Agreement is substantively unconscionable because: (1) it was executed at the same time as the parties’ Confidentiality Agreement; (2) the Confidentiality Agreement is unconscionable because it requires Plaintiff, as a condition of employment, to refrain and sign a waiver preventing her from disclosing her wages in violation of her rights under Labor Code section 232; and (3) California courts have found substantive unconscionability where, like here, arbitration agreements are executed on the same day as other documents containing unconscionable terms. (Opposition, pp. 12:21-13:24; citing *Silva v. Cross Country Healthcare, Inc.* (2025) 111 Cal.App.5th 1311, 1322-1323 (*Silva*); *Alberto v. Cambrian Homecare* (2023) 91 Cal.App.5th 482, 490-491 (*Alberto*).)

In *Alberto*, “the plaintiff signed two contracts as part of the hiring process—namely, (1) an arbitration agreement, and (2) a confidentiality agreement. The arbitration agreement specified that ‘[a]ny and all claims or controversies arising out of [the employee’s] employment’ would ‘be resolved through final and binding arbitration.’ (*Alberto*, at p. 486, 308 Cal.Rptr.3d 230.) The confidentiality agreement obligated the employee to keep secret the employer’s ‘trade secrets,’ to ‘acknowledge’ that unauthorized disclosure ‘would cause irreparable injury’ to the employer, and to ‘consent to the order of an immediate injunction, without bond, from any court of competent jurisdiction.’ (*Id.* at p. 487, 308 Cal.Rptr.3d 230.)” (*Silva*, *supra*, 111 Cal.App.5th at p. 1323.)

“Invoking [Civil Code] section

1642, the appellate court in *Alberto* had ‘no difficulty concluding’ that the two agreements ‘should be read together’ because ‘both [were] separate aspects of a single primary transaction—[the employee’s] hiring’ and ‘both governed, ultimately, the same issue—how to resolve disputes arising between [the employee] and [the employer] arising from ... employment.’ ([*Alberto*] at pp. 490-491, 308 Cal.Rptr.3d 230.) ‘Failing to read them together,’ the court in *Alberto* continued, ‘artificially segments the parties’ contractual relationship’ and ‘fails to account for the overall dispute resolution process the parties agreed upon.’ (Id. at p. 491, 308 Cal.Rptr.3d 230.)” (Silva, supra, 111 Cal.App.5th at p. 1323.)

Here, Defendants have not

addressed or disputed Plaintiff’s argument that the Confidentiality Agreement and Arbitration Agreement should be read together, and that the former violates Labor Code section 232.

Therefore, the Court finds that

Plaintiff has established that the Arbitration Agreement is substantively unconscionable because the Confidentiality Agreement prevents her from disclosing her wages in violation of Labor Code section 232, which states: “No employer may do any of the following: ¶ (a) Require, as a condition of employment, that an employee refrain from disclosing the amount of his or her wages. ¶ (b) Require an employee to sign a waiver or other document that purports to deny the employee the right to disclose the amount of his or her wages. ¶ (c) Discharge, formally discipline, or otherwise discriminate against an employee who discloses the amount of his or her wages.”

However, “[a]n unconscionable

contractual term may be severed and the resulting agreement enforced, unless the agreement is permeated by an unlawful purpose, or severance would require a court to augment the agreement with additional terms. [Citation.]’ [Citation.] Severance may be properly denied when the agreement contains more than one unconscionable provision, and “‘there is no single provision a court can strike or restrict in order to remove the unconscionable taint from the agreement.” [Citation.]’ [Citation.]” (Cook, supra, 102 Cal.App.5th at pp. 328–329.)

Here, the Court can sever the

unconscionable terms in the Confidentiality Agreement.

However, even if severance is improper as Plaintiff argues, as stated earlier in this ruling, unconscionability requires both procedural and substantive unconscionability. Here, Plaintiff has failed to establish procedural unconscionability.

For those reasons, the Court finds that Plaintiff has failed to establish unconscionability.

Request
for Stay

The Court grants Defendant's request to stay this action pending arbitration. (See Ford Motor Warranty Cases, supra, 17 Cal.5th at p. 1128 ["Unless an exception applies, if the matter is arbitrable, the court 'shall on application of one of the parties stay the trial of the action until such arbitration has been had in accordance with the terms of the agreement' (9 U.S.C. § 3)"].)

Conclusion

Defendant's motion to compel arbitration and to stay proceedings pending completion of arbitration is GRANTED.

Defendant to give notice.

IT IS SO ORDERED.

Dated: July 27, 2026 _____

Rolf
M. Treu

Judge
of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties

must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.